24STCV13228 24STCV13228

County: los-angeles

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Case Number: 24STCV13228 Hearing Date: August 3, 2026 Dept: 511

Tentative Ruling

Judge Upinder S. Kalra, Department 511

HEARING DATE: August 3, 2026

CASE NAME: Sean Gray v. General Motors, LLC

CASE NO.: 24STCV13228

MOTION FOR ATTORNEYS’ FEES AND COSTS

MOVING PARTY: Plaintiff Sean Gray

RESPONDING PARTY(S): Defendant General Motors LLC

REQUESTED RELIEF:

1. An order awarding $35,968.00 in attorneys’ fees, $5,395.20 multiplier, and $1,715.87 in costs.

TENTATIVE RULING:

1. Motion
for attorneys' fees and costs is GRANTED as modified:

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On May 28, 2024, Plaintiff Sean Gray (Plaintiff) filed a Song-Beverly complaint against General Motors, LLC (GM) with two causes of action for: (1) breach of implied warranty of merchantability; and (2) breach of express warranty. This case involves a 2022 GMC Sierra 1500 (the Vehicle) that Plaintiff leased from GM.

On July 1, 2024, GM filed an answer.

On January 16, 2026, Plaintiff filed a notice of settlement of entire case.

On April 29, 2026, Plaintiff filed the instant motion for attorneys' fees and costs as well as a memorandum of costs. On July 21, 2026, GM filed an opposition. On July 27, 2026, Plaintiff filed a Reply.

LEGAL STANDARD:

A prevailing buyer in an action under Song-Beverly "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the Court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."¿ (Civ. Code, § 1794(d).) By¿permitting¿buyers who prevail under Song-Beverly to recover their attorneys' fees, "our Legislature has provided injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible." (Murillo v. Fleetwood Enterprises, Inc. (1998) 17 Cal.4th 985, 994.)¿¿¿¿¿

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The prevailing party has the burden of showing that the requested attorney fees are reasonable. (Robertson v. Fleetwood Travel Trailers of California Inc.¿(2006) 144 Cal.App.4th 785, 817.) The party seeking attorney fees "is not necessarily entitled to the compensation of the value of attorney services according to [his or her] own notion or to the full extent claimed¿. . . .”¿ (Levy v. Toyota Motor Sales, USA, Inc.¿(1992) 4 Cal.App.4th 807, 816.) If the “time expended or the monetary charge being made for the time expended are not reasonable under all circumstances, then the court must take this into account and award fees in a lesser¿amount.”¿(Nightingale v. Hyundai Motor America¿(1994) 31 Cal.App.4th 99, 104.)¿¿¿¿¿

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A calculation of attorneys’ fees for a Song-Beverly action begins with the “lodestar” approach, under which the Court fixes the lodestar at “the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Margolin v. Regional Planning Com.¿(1982) 134 Cal.App.3d 999, 1004-1005.) “California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Ibid.)¿¿¿¿

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“It is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, non-complex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.”¿ (Morris v. Hyundai Motor America¿(2019) 41 Cal.App.5th 24, 39.) It is also¿appropriate to¿reduce a fee award based on “inefficient or duplicative efforts” in the billing record. (Id. at p. 38.) However, the analysis must be “reasonably specific” and cannot rely on general notions about the fairness of the fee award. (Kerkeles¿v. City of San Jose¿(2015) 243 Cal.App.4th 88, 102.) Moreover, in conducting the analysis, courts are not¿permitted¿to tie any reductions in the fee¿award¿to some proportion of the¿buyer’s damages¿recovery. (Warren v. Kia Motors America, Inc.¿(2018) 30 Cal.App.5th 24, 39.)¿¿¿¿¿

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The lodestar figure may also be adjusted, based on consideration of factors specific to the case,¿in order to¿fix the fee at¿the¿fair¿market value¿for the legal services provided. (Serrano v. Priest¿(1977) 20 Cal.3d 25, 49;¿PLCM Group, Inc. v. Drexler¿(2000) 22 Cal.App.4th 1084, 1095.)¿The factors considered in¿determining¿the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill¿required¿and employed to handle the case, the attention given, the success or failure,¿and other circumstances in the case. (EnPalm, LLC v.¿Teitler¿Family Trust¿(2008) 162 Cal. App. 4th 770, 774 (emphasis in original).)¿A negative modifier was¿appropriate when¿duplicative work had been performed. (Thayer v. Wells Fargo Bank,¿N.A.¿(2001) 92 Cal.App.4th 819.)¿¿

ANALYSIS:

i.
Prevailing Party

Here, Plaintiff is the prevailing party because the CCP § 998 offer he accepted on January 21, 2026 provides such. (Declaration of David N. Barry (Barry Decl.) ¶ 10, Exhibit 1.)

ii.
Lodestar Fees

The lodestar method looks at the time spent on a matter multiplied by the reasonable hourly rate. (Serrano, supra¿20 Cal.3d at 49).¿The two-step process begins with the lodestar method, which is the time spent on the matter multiple by the hourly rate. After the lodestar method, the second step is¿determining¿whether a multiplier should be applied. The factors that¿Courts¿look at to determine if a multiplier is reasonable are: 1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Ketchum v. Moses¿(2001) 24 Cal.4th 1122, 1132).¿¿¿

a. Reasonableness
of Hourly Rate

Plaintiff seeks to recover the following hourly rates: $695, $600, $550, $450, and $350.

GM does not challenge the hourly rates.

The trial court has discretion to “determine the hourly rates that should be used in the lodestar calculus.” (Morris, supra, 41 Cal.App.5th at p. 35.) It may do so by relying “on its own knowledge and familiarity with the legal market,” “the experience, skill, and reputation of the attorney requesting fees,” “the difficulty or complexity of the litigation to which that skill was applied,” and “affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (Id. at p. 41.)

Here, the hourly rates requested are reasonable based on the hourly rate of similarly situated attorneys in the Los Angeles area. Notably, Plaintiff provided evidence of the attorneys’ rates, experience and involvement with the case as well as comparative literature rooting these rates in the consumer law practice. (Barry Decl. ¶¶ 13, 18, 20, 21, 22, 23, 24; Declaration of Otis R. Hayes III; Declaration of Brian Kim; Declaration of Pauliana N. Lara; Declaration of Kristopher Storti.)

Thus, the hourly rates are¿appropriate.¿However, billing at¿premium rates¿comes with the expectation that the attorney¿also work¿in an efficient manner that reflects the premium paid for his or her services. The court considers this fact in addressing the reasonableness of the hours¿expended.¿

b. Reasonableness of Hours Spent

Plaintiff seeks to recover a total of 64.7 hours on this matter.[1]

GM argues the hours are woefully inflated since the work performed is solely templated work. They request a reduction of 42.8 hours ($25,791.00).

Although a verified fee bill is “prima facie evidence the costs, expenses and services listed were necessarily incurred,” (Hadley v. Krepel¿(1985) 167 Cal.App.3d 677, 682), ultimately,¿Counsel¿still has the burden to¿demonstrate¿the reasonableness of charges.¿(Mikhaeilpoor,¿supra,¿48 Cal.App.5th¿at p.¿247.)

“A trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended.” (Morris, supra, 41 Cal.App.5th at p. 38 [citing Donahue v. Donahue (2010) 182 Cal.App.4th 259, 271.]) In their evaluation, courts consider whether the case was overstaffed, how much time the attorney spent on particular claims, and whether the hours were reasonably expended. (Ibid.)
In short, courts will not allow “padding” in the form of inefficient or duplicative efforts. (Ibid.; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) “Plainly, it is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (Morris, supra, 41 Cal.App.5th at p. 39.)

Here, the Court has reviewed the detailed fee bill with an eye for excessive, duplicative or unreasonable charges as contended by Defendant. Except as indicating below, for the most part, the fees are reasonable. First, in their Reply Plaintiff agrees that all charges related to the unchallenged memo of costs should rightly be removed for a reduction of $5,838. Second, the court agrees that travel time is not reasonably compensated particularly with the availability of remote appearances. As such the court reduces the request by an additional $4,730. Third, template work promotes efficiency. Nonetheless, the court agrees that some of the template discovery charges were unreasonable. As such, the court reduces the request by an additional $1,000. In all other respects, the fees appear reasonable.[2]

c. Multiplier of .15

The factors that Courts look at to determine if a multiplier is reasonable are: 1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132). Plaintiff contends that the lodestar fees are reasonable. Defendant contends that no multiplier should be awarded because this case did not present any novelty or difficulty.

Here, the court declines to apply the requested 0.15 lodestar enhancement. While Plaintiff's counsel obtained excellent results, this was a relatively straightforward reasonably routine lemon law case, an area in which Plaintiffs' counsel specializes, there were not any novel or complex issues that were presented. Thus, the contingent risks, skill, and difficulty Plaintiffs' attorneys assert are absorbed by their hourly rates. (See Robertson v. Fleetwood Travel Trailers of California. Inc. (2006) 144 Cal.App.4th 785, 822.) Stated otherwise, Plaintiff has failed it in its burden to establish that the Ketchum factors warrant a positive multiplier. Accordingly, Plaintiffs' request for a lodestar multiplier is denied.

iii.
Costs

Plaintiff seeks to recover $1,715.87 in costs.

GM argues the costs should be reduced to $536.20, including, (1) the jury fee deposit; (2) nonparty dealership service of process fees; (3) court reporter fees; (4) fees for electronic service; and (5) costs for mileage and parking.

"Except as otherwise¿expressly¿provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) (Emphasis added.) Code of Civil Procedure section 1032, subdivision (a) defines a "prevailing party" as "[1] the party with a net monetary recovery, [2] a defendant in whose favor dismissal is entered, [3] a defendant where neither plaintiff nor defendant obtains any relief, and [4] a defendant as against those plaintiffs who do not recover any relief against that defendant."¿¿¿¿

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Costs are allowable if incurred,¿whether or not¿paid. (Code Civ. Proc., § 1033.5, subd. (c)(1).) Costs must also be "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and must be reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).)¿

The court finds the challenged fees to be reasonably incurred, except for the reporter fees. While invoices are attached for costs, none were presented for reporter fees. Moreover, the cost memorandum did not have a date in which this cost was incurred either. As such, the court reduces costs by $550 and awards a total of $1,165.87

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for attorneys' fees and costs is GRANTED as modified:

a. Attorney fees $24,400

b. Costs $1,165.87

c. Total $25,565.87

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 3, 2026 ___________________________________ Upinder S. Kalra

Judge of the Superior Court

[1] Plaintiff also requests a multiplier. However, a multiplier is not necessary. This was a straightforward lemon law action that settled without any motion practice. There are simply no factors in support of a multiplier.

[2]

The court agrees with Plaintiff’s contention that, “Parties who litigate with no holds barred in cases such as this, in which the prevailing party is entitled to a fee award, assume the risk they will have to reimburse the excessive expenses they force upon their adversaries.” (Stokus v. Marsh (1990) 217 Cal.App.3d 647, 653-654.)